

UPSC INDIAN POLITY

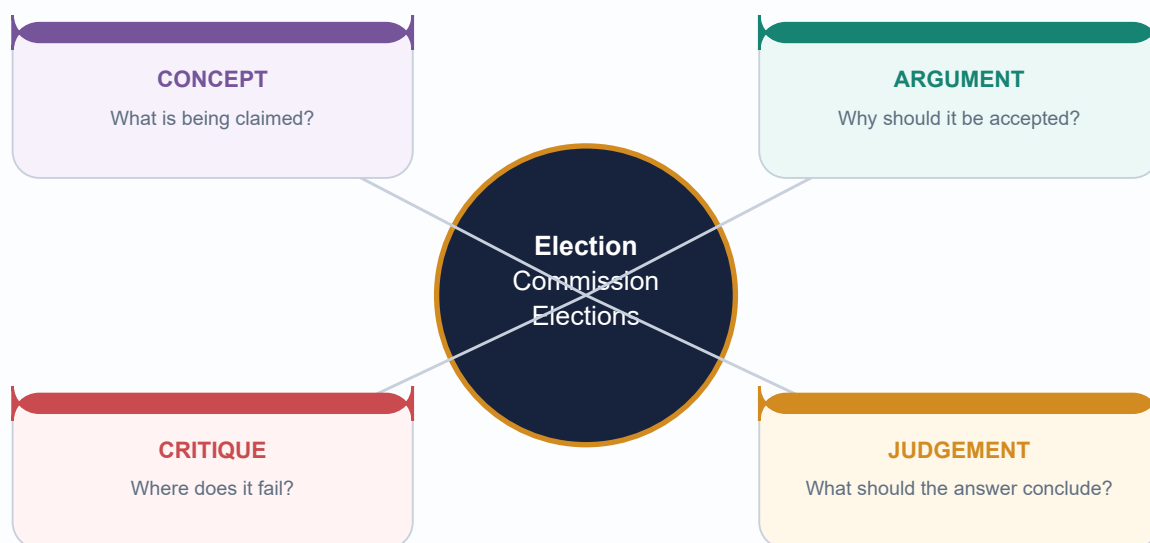
Election Commission + Elections & Electoral Reforms (Articles 324–329) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity • GS Paper II • Prelims + Mains

Layer 1: Basic foundation • Layer 2: Advanced constitutional and exam depth

Sources: Election-Commission.md + 27_Election-Commission.md

Learning cards: 20



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Basic (foundation) · **GS-II***Foundation learning layer: concepts → constitutional detail → UPSC application.*

STATIC THEORY

• greater than □ = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/27_Election-Commission.md.*

MEMORY HOOK

greater than □ = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/27_Election-Commission.md.*

MUST-KNOW FACTS

1. greater than = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/27_Election-Commission.md.*

MAINS ANGLE

STUDY LINK

Election Commission + Elections & Electoral Reforms (Articles 324–329) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Fact
Article	Art 324 (EC); 325–329 (elections)
Nature	Permanent independent constitutional body
Composition	CEC + 2 ECs (3-member since Oct 1993)
Term	6 years or 65 years , whichever earlier
Removal (CEC)	Like a Supreme Court judge

MAINS ANGLE

STUDY LINK

Election Commission + Elections & Electoral Reforms (Articles 324–329) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea

GS-II Indian
Polity

INTRO & ORIGIN

The **Election Commission of India (ECI)** conducts free & fair elections to **Parliament, State Legislatures, and the President/Vice-President offices** (NOT local bodies — those are the State Election Commission). The CEC and two ECs have **equal powers** and decide differences by **majority**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea

Dimension 1 The Election Commission of India (ECI) conducts free & fair elections to Parliament, State Legislatures, and the President/Vice-President offices (NOT	Dimension 2 greater than □ EC powers = ABC — Administrative · Advisory · Quasi-Judicial.
Dimension 3 greater than □ Removal asymmetry: CEC removed like an SC judge; other ECs only on the CEC's recommendation.	

STATIC THEORY

- greater than □ **EC powers = ABC** — Administrative · Advisory · Quasi-Judicial.
- greater than □ **Removal asymmetry**: CEC removed like an SC judge; **other ECs only on the CEC's recommendation**.

MEMORY HOOK

greater than EC powers = ABC — Administrative · Advisory · Quasi-Judicial. | greater than Removal asymmetry: CEC removed like an SC judge; other ECs only on the CEC's recommendation.

MAINS ANGLE

STUDY LINK

Election Commission + Elections & Electoral Reforms (Articles 324–329) — ADVANCED / COMPLETE → Core idea

HIGH

Foundation · Must-Know Facts

GS-II Indian
Polity

INTRO & ORIGIN

- Appointed by the **President**; term **6 yr / 65 yr**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

Dimension 1 ☐ Appointed by the President; term 6 yr / 65 yr.	Dimension 2 ☐ Voting age lowered 21 → 18 by the 61st Amendment (1988).
Dimension 3 ☐ Art 326 = universal adult suffrage; Art 329 = bar on court interference (election petitions only).	Dimension 4 ☐ Governed by RPA 1950 & 1951.

STATIC THEORY

- ☐ Voting age lowered **21** → **18** by the **61st Amendment (1988)**.
- ☐ **Art 326** = universal adult suffrage; **Art 329** = bar on court interference (election petitions only).
- ☐ Governed by **RPA 1950 & 1951**.
- ☐ Reforms: **NOTA (2013)**, **VVPAT**, **exit-poll ban**, **NRI voting**.

MUST-KNOW FACTS

1. Appointed by the **President**; term **6 yr / 65 yr**.
2. Voting age lowered **21** → **18** by the **61st Amendment (1988)**.
3. **Art 326** = universal adult suffrage; **Art 329** = bar on court interference (election petitions only).
4. Governed by **RPA 1950 & 1951**.
5. Reforms: **NOTA (2013)**, **VVPAT**, **exit-poll ban**, **NRI voting**.

MAINS ANGLE

STUDY LINK

Election Commission + Elections & Electoral Reforms (Articles 324–329) — **ADVANCED / COMPLETE** → Must-Know Facts

HIGH

Foundation • ☐ Current linkGS-II Indian
Polity

NEWS TRIGGER

☐ **CEC & Other ECs Appointment Act 2023** replaced the CJI on the selection panel with a Union Minister (PM + Minister + LoP) — **SC challenge ongoing in 2026**; CEC **Gyanesh Kumar** appointed Feb 2025. **Electoral bonds struck down (Feb 2024)**; **One Nation One Election** debate live.

INTRO & ORIGIN

Exam-ready treatment of ☐ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Election Commission + Elections & Electoral Reforms (Articles 324–329) — **ADVANCED / COMPLETE** → ☐ Current link

HIGH

Advanced • Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity • **Tier:** Advanced (exam depth) • **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1

greater than **Subject:** Polity • **Tier:** Advanced (exam depth) •
GS Paper: GS-II

Dimension 2

greater than **Grounded in:** Indian Polity by M. Laxmikant, Ch. 42 & 71–72 (direct check of the local Sixth Revised Edition PDF) + India Code/ECI updates

Dimension 3

greater than □ = from source book • □□ = inference / case law • □ = current affairs.

Dimension 4

greater than **Companion:** basic/Election-Commission.md.

STATIC THEORY

• greater than **Grounded in:** Indian Polity by M. Laxmikant, Ch. 42 & 71–72 (direct check of the local Sixth Revised Edition PDF) + India Code/ECI updates.

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MUST-KNOW FACTS

1. greater than = from source book • □□ = inference / case law • □ = current affairs.

MAINS ANGLE

STUDY LINK

Election Commission + Elections & Electoral Reforms (Articles 324–329) — **ADVANCED / COMPLETE** → Core Foundation

HIGH

Advanced • PART A — ELECTION COMMISSION OF INDIA (Art 324) □

GS-II Indian
Polity

INTRO & ORIGIN

□ A **permanent, independent constitutional body** ensuring free & fair elections to **Parliament, State Legislatures, the offices of President & Vice-President**. An **all-India body** (common to Centre & states).

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• □ **NOT** concerned with **panchayat/municipality** polls → that's the **State Election Commission**.

MUST-KNOW FACTS

1. A **permanent, independent constitutional body** ensuring free & fair elections to **Parliament, State Legislatures, the offices of President & Vice-President**. An **all-India body** (common to Centre & states).
2. **NOT** concerned with **panchayat/municipality** polls → that's the **State Election Commission**.

MAINS ANGLE**STUDY LINK**

Election Commission + Elections & Electoral Reforms (Articles 324–329) — **ADVANCED / COMPLETE** → **PART A — ELECTION COMMISSION OF INDIA (Art 324)** □

HIGH**Advanced · Composition (Art 324)**

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Point	Detail
□ Members	CEC + such other ECs as the President fixes
□ Appointment	By the President
□ History	Single-member till 15 Oct 1989; became 3-member (CEC + 2 ECs) permanently from Oct 1993
□ Equal powers	CEC & 2 ECs have equal power/salary (= a Supreme Court judge); disputes decided by majority
□ Term	6 years or 65 years , whichever earlier
□ Regional Commissioners	President may appoint (after consulting EC) to assist

MAINS ANGLE**STUDY LINK**

Election Commission + Elections & Electoral Reforms (Articles 324–329) — **ADVANCED / COMPLETE** → **Composition (Art 324)**

HIGH**Advanced · Independence (Art 324)** □

GS-II Indian Polity

INTRO & ORIGIN

- **CEC removed only like a Supreme Court judge** (special-majority resolution of both Houses on proved

Advanced learning layer: concepts → constitutional detail → UPSC application.

INDEPENDENCE (ART 324) □: RECALL MAP

Independence (Art 324) □

Dimension 1 □ CEC removed only like a Supreme Court judge (special-majority resolution of both Houses on proved)	Dimension 2 misbehaviour/incapacity) — not during the President's pleasure.
Dimension 3 □ CEC's service conditions can't be varied to his disadvantage after appointment.	Dimension 4 □ Other ECs / Regional Commissioners removed only on the CEC's recommendation.

STATIC THEORY

- misbehaviour/incapacity) — **not** during the President's pleasure.
- □ CEC's service conditions can't be varied to his disadvantage after appointment.
- □ Other ECs / Regional Commissioners removed **only on the CEC's recommendation**.
- □ □ **Flaws Laxmikant flags:** Constitution prescribes **no qualifications, no fixed term** (set by law/rules),
- and does **not debar** retired ECs from further government appointment.

MUST-KNOW FACTS

1. CEC removed **only like a Supreme Court judge** (special-majority resolution of both Houses on proved)
2. CEC's service conditions can't be varied to his disadvantage after appointment.
3. Other ECs / Regional Commissioners removed **only on the CEC's recommendation**.

MAINS ANGLE

STUDY LINK

Election Commission + Elections & Electoral Reforms (Articles 324–329) — **ADVANCED / COMPLETE** → Independence (Art 324) □

HIGH

Advanced • □ CEC/EC Appointment — the big current story □ □

GS-II Indian
Polity

NEWS TRIGGER

□ **Anoop Baranwal v. Union of India (March 2023):** SC ruled the CEC/ECs be appointed by a committee of **PM + LoP (Lok Sabha) + CJI** — *until Parliament makes a law*. □ **CEC & Other ECs (Appointment, Conditions of Service and Term of Office) Act, 2023** replaced the CJI with a

INTRO & ORIGIN

Union Cabinet Minister → selection committee = **PM (chair) + a Union Minister + LoP**, giving the executive a **2:1 majority**. Critics say it dilutes EC independence.

Advanced learning layer: concepts → constitutional detail → UPSC application.

□ CEC/EC APPOINTMENT — THE BIG CURRENT STORY □□: RECALL MAP

□ CEC/EC Appointment — the big current story □□

Dimension 1 Union Cabinet Minister → selection committee = PM (chair) + a Union Minister + LoP, giving the executive a 2:1 majority. Critics say it dilutes EC ind	Dimension 2 □ CEC Gyanesh Kumar was appointed in Feb 2025 under the new Act. Status
Dimension 3 checked 21 Jul 2026: the constitutional challenge to section 7 remains pending; the Supreme Court's 22 Mar 2024 order declined interim interference wi	

STATIC THEORY

- □ CEC Gyanesh Kumar was appointed in **Feb 2025** under the new Act. **Status
- checked 21 Jul 2026: * the constitutional challenge to section 7 remains pending; the Supreme Court's 22 Mar 2024 order declined interim interference with the appointments. The question is the Act's compatibility with institutional-independence and free-and-fair- election principles, not Parliament's competence to enact a law after Anoop Baranwal*.

MAINS ANGLE

STUDY LINK

Election Commission + Elections & Electoral Reforms (Articles 324–329) — **ADVANCED / COMPLETE** → □ CEC/EC Appointment — the big current story □□

HIGH

Advanced · Powers & Functions (3 categories) □

GS-II Indian Polity

INTRO & ORIGIN

Administrative (assists the statutory **Delimitation Commission**; prepares electoral rolls, notifies schedule, allots symbols, enforces Model Code of Conduct, cancel rigged polls) · **Advisory** (advise President/Governor on MP/MLA disqualifications) · **Quasi-judicial** (settle party recognition & symbol disputes).

Advanced learning layer: concepts → constitutional detail → UPSC application.

POWERS & FUNCTIONS (3 CATEGORIES) □: RECALL MAP

Powers & Functions (3 categories) □

Dimension 1 Administrative (assists the statutory Delimitation Commission; prepares electoral rolls, notifies schedule, allots symbols, enforces Model Code of Con	Dimension 2 □ Assisted by Deputy ECs (civil service); at state level the Chief Electoral Officer; district = DEO/
Dimension 3 Collector as District Returning Officer.	

STATIC THEORY

- □ Assisted by **Deputy ECs** (civil service); at state level the **Chief Electoral Officer**; district = **DEO/
- Collector** as District Returning Officer.

MUST-KNOW FACTS

1. Assisted by **Deputy ECs** (civil service); at state level the **Chief Electoral Officer**; district = ****DEO**/

MAINS ANGLE**STUDY LINK**

Election Commission + Elections & Electoral Reforms (Articles 324–329) — **ADVANCED / COMPLETE** → Powers & Functions (3 categories) □

HIGH**Advanced · PART B — ELECTIONS (Art 325–329) □**

GS-II Indian Polity

INTRO & ORIGIN

□ **Art 325**: one **general electoral roll** — no exclusion on religion, race, caste, sex.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART B — ELECTIONS (ART 325–329) □: RECALL MAP**PART B — ELECTIONS (Art 325–329) □**

Dimension 1 □ Art 325: one general electoral roll — no exclusion on religion, race, caste, sex.	Dimension 2 □ Art 326: elections to Lok Sabha & State Assemblies on adult suffrage (voting age 18, lowered from
Dimension 3 21 by the 61st Amendment 1988/89).	Dimension 4 □ Art 327/328: Parliament / State legislature power to make election laws (RPA 1950 & RPA 1951).

STATIC THEORY

- □ **Art 326**: elections to Lok Sabha & State Assemblies on **adult suffrage** (voting age **18**, lowered from
- 21 by the **61st Amendment 1988/89**).
- □ **Art 327/328**: Parliament / State legislature power to make election laws (**RPA 1950 & RPA 1951**).
- □ **Art 329: bar on court interference** in electoral matters (delimitation; elections challengeable only by
- **election petition** to the HC).

MUST-KNOW FACTS

1. **Art 325**: one **general electoral roll** — no exclusion on religion, race, caste, sex.
2. **Art 326**: elections to Lok Sabha & State Assemblies on **adult suffrage** (voting age **18**, lowered from
3. **Art 327/328**: Parliament / State legislature power to make election laws (**RPA 1950 & RPA 1951**).
4. **Art 329: bar on court interference** in electoral matters (delimitation; elections challengeable only by

MAINS ANGLE**STUDY LINK**

Election Commission + Elections & Electoral Reforms (Articles 324–329) — **ADVANCED / COMPLETE** → **PART B — ELECTIONS (Art 325–329)** □

HIGH

Advanced • PART C — ELECTORAL REFORMS
(highlights) □

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Reform	Detail
□ NOTA (2013)	SC-directed (PUCL case); "None of the Above" on EVM — but highest-vote candidate still wins
□ VVPAT	Voter Verifiable Paper Audit Trail — independent verification of the EVM vote
□ Exit-poll ban	Prohibited during the notified poll period (2009)
□ NRI voting (2010)	Overseas Indians can register at their passport-address constituency
□ Online enrolment (2013)	e-registration in the electoral roll
□ Security deposit hike (2009)	To curb non-serious candidates
□ □ 1988	EVMs & anti-defection; 1996 — disqualification of convicts, liquor ban 48 hrs before poll

MAINS ANGLE

STUDY LINK

Election Commission + Elections & Electoral Reforms (Articles 324–329) — ADVANCED / COMPLETE → PART C — ELECTORAL REFORMS (highlights) □

HIGH

Advanced • □ CA hooks

GS-II Indian
Polity

NEWS TRIGGER

□ **Remote Voting Machine (RVM)** remains an ECI proposal/prototype for consultation, not an enacted voting entitlement. □ **Electoral Bonds struck down** by the SC (Feb 2024) as unconstitutional (violated right to information) —

INTRO & ORIGIN

political-funding transparency.

Advanced learning layer: concepts → constitutional detail → UPSC application.

□ CA HOOKS: RECALL MAP

□ CA hooks

Dimension 1 political-funding transparency.	Dimension 2 □ VVPAT 100% verification demand — SC (Apr 2024) declined full count but ordered checks; "One Nation, One
Dimension 3 Election" (Kovind Committee → Constitution Amendment Bills) debate.	Dimension 4 □ Electoral-roll revision controversies must be tied to the relevant ECI order and

STATIC THEORY

- □ **VVPAT 100% verification** demand — SC (Apr 2024) declined full count but ordered checks; ***"One Nation, One
- Election"*** (Kovind Committee → Constitution Amendment Bills) debate.
- □ Electoral-roll revision controversies must be tied to the relevant ECI order and
- pending judicial proceeding; they are not a permanent nationwide rule.

MAINS ANGLE

STUDY LINK

Election Commission + Elections & Electoral Reforms (Articles 324–329) — ADVANCED / COMPLETE → □ CA hooks

HIGH

Advanced • □ Model Code of Conduct (MCC)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

MCC area	Legal character
Hate speech, bribery, communal appeals	May attract RPA/BNS and other statutory provisions
Official machinery, ads, transfers, new schemes	Mostly administrative ECI enforcement
General conduct of parties/candidates	Non-statutory code backed by Art 324 supervision

MAINS ANGLE

STUDY LINK

Election Commission + Elections & Electoral Reforms (Articles 324–329) — ADVANCED / COMPLETE → □ Model Code of Conduct (MCC)

HIGH

Advanced • Model Code of Conduct (MCC) • Part 1GS-II Indian
Polity

INTRO & ORIGIN

greater than  Grounded in M. Laxmikant *Indian Polity* +  standard +  verified. Added to close a UPSC gap.

Advanced learning layer: concepts → constitutional detail → UPSC application.

 MODEL CODE OF CONDUCT (MCC): RECALL MAP Model Code of Conduct (MCC)

Dimension 1

greater than  Grounded in M. Laxmikant *Indian Polity* +  standard +  verified. Added to close a UPSC gap.

Dimension 2

 Laxmikant notes the MCC was agreed to by political parties in 1968 and is linked to ECI election supervision.

Dimension 3

 MCC is non-statutory; it operates through ECI's Art 324 powers and political consensus.

Dimension 4

 It comes into force from the announcement of the election schedule and lasts till completion of the poll process.

STATIC THEORY

-  Laxmikant notes the MCC was agreed to by political parties in 1968 and is linked to ECI election supervision.
-  MCC is **non-statutory**; it operates through ECI's Art 324 powers and political consensus.
-  It comes into force from the announcement of the election schedule and lasts till completion of the poll process.
-  Some violations overlap with enforceable law — e.g., RPA 1951 corrupt practices/
- silence period and offences now governed by the **BNS, 2023** (from 1 Jul 2024).
-   ECI can censure, advise, order transfers or direct prosecution where a statutory offence is made out.

MUST-KNOW FACTS

1. greater than Grounded in M. Laxmikant *Indian Polity* +  standard +  verified. Added to close a UPSC gap.
2. Laxmikant notes the MCC was agreed to by political parties in 1968 and is linked to ECI election supervision.

MAINS ANGLE

STUDY LINK

Election Commission + Elections & Electoral Reforms (Articles 324–329) — ADVANCED / COMPLETE →  Model Code of Conduct (MCC)

HIGH

Advanced • ☐ Model Code of Conduct (MCC) • Part 2GS-II Indian
Polity

INTRO & ORIGIN

greater than ☐ Trap: MCC is not a statute, but parts of the same conduct may still be punishable under RPA/IPC.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MEMORY HOOK

greater than Trap: MCC is not a statute, but parts of the same conduct may still be punishable under RPA/IPC.

MAINS ANGLE

STUDY LINK

Election Commission + Elections & Electoral Reforms (Articles 324–329) — **ADVANCED / COMPLETE** → ☐ Model Code of Conduct (MCC)

HIGH

Advanced • UPSC Traps

GS-II Indian
Polity

INTRO & ORIGIN

recommendation** (weaker protection than the CEC).

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- the CJI with a Union Minister.

UPSC TRAPS

WRONG: EC conducts panchayat/municipality polls

CORRECT: those are the **State Election Commission's**.

WRONG: ECs can be removed only on a Parliament resolution like the CEC

CORRECT: **other ECs** are removed on the ****CEC's**

WRONG: CEC & ECs have unequal powers (CEC superior)

CORRECT: **equal** powers; disputes by **majority**.

WRONG: The Constitution fixes the ECs' term at 6 years

CORRECT: the Constitution is **silent**; 6 yr/65 is set by **law**.

WRONG: Anoop Baranwal put the CJI permanently on the panel

CORRECT: only **"until a law is made"**; the 2023 Act **replaced**

WRONG: Voting age was 18 from 1950

CORRECT: lowered from **21** → **18** by the **61st Amendment (1988)**.

MAINS ANGLE**STUDY LINK**

Election Commission + Elections & Electoral Reforms (Articles 324–329) — **ADVANCED / COMPLETE** → UPSC Traps

HIGH**Advanced · Mains angles****GS-II** Indian Polity**INTRO & ORIGIN**

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"The independence of the Election Commission depends more on the appointment process than on removal safeguards." Examine in light of the 2023 Act. Electoral reforms — from EVMs and NOTA to electoral bonds and One Nation One Election: assess the trajectory. Should the removal protection of the two ECs be brought on par with the CEC? Discuss.

STUDY LINK

Election Commission + Elections & Electoral Reforms (Articles 324–329) — **ADVANCED / COMPLETE** → Mains angles

HIGH**Advanced · Verified PYQ applications****GS-II** Indian Polity**INTRO & ORIGIN**

Exam-ready treatment of Verified PYQ applications.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

□ **2024 GS-II Q1 (10 marks, 150 words):** "Examine the need for electoral reforms as suggested by various committees with particular reference to 'one nation – one election' principle." Route: committee proposals -greater than claimed stability/cost gains -greater than federal, accountability and mid-term-collapse problems -greater than constructive safeguards. □ **2025 GS-II Q1 (10 marks, 150 words):** "Discuss the 'corrupt practices' for the purpose of the Representation of the People Act, 1951. Analyze whether the increase in the assets of the legislators and/or their associates, disproportionate to their known sources of income, would constitute 'undue influence' and consequently a corrupt practice." Route: Section 123 categories -greater than strict proof/election nexus -greater than distinguish unexplained enrichment from voter coercion/undue influence -greater than disclosure, investigation and disqualification reform.

STUDY LINK

Election Commission + Elections & Electoral Reforms (Articles 324–329) — **ADVANCED / COMPLETE** → Verified PYQ applications